

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUWT031459: STACY S. FINE M.D. vs FOUNDATION PHYSICIANS MEDICAL
GROUP, INC., et al.**

09/02/2026 in Department 43

Motion for Protective Order re: Deposition of Theresa Hylen

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Dignity Health Medical Foundation, Inc.'s Motion for Protective Order re Deposition of Theresa Hylen

Tentative Ruling: Defendant Dignity Health Medical Foundation, Inc.'s Motion for Protective Order re Deposition of Theresa Hylen is GRANTED in part and DENIED in part as explained below.

Theresa Hylen is DHMF's Chief Financial Officer and a sufficiently high-ranking corporate officer to implicate the "apex"-deposition principles stated in *Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282. Plaintiff has made a sufficient showing that Hylen possesses relevant personal knowledge and that Plaintiff has pursued substantial discovery from other sources. Hylen personally approved or executed agreements relating to Plaintiff, has described her role in approving physician payment terms and access to DHMF facilities, and submitted declarations concerning the relationship between DHMF and Foundation Physicians Medical Group, Inc. ("FPMG") and Plaintiff's employment. Plaintiff has also conducted extensive written discovery and numerous depositions of lower-level personnel.

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The request to preclude Hylen's deposition or require Plaintiff to proceed by written interrogatories is therefore denied.

The motion is granted, however, to the extent DHMF seeks a reasonable limitation on the scope of this apex deposition. Plaintiff may examine Hylen concerning:

1. The circumstances surrounding and factual basis for Hylen's execution, approval, or sign-off on Plaintiff's Physician Employment Agreement, the First Amendment to that agreement, and the Administrative Services Agreement identified in Plaintiff's opposition;
2. Hylen's role in DHMF's review and approval of physician employment agreements under the Professional Services Agreement ("PSA"), including PSA section 1.24, and the manner in which that review-and-approval process operated;
3. The factual basis for statements contained in Hylen's declarations, including her statements concerning DHMF's authority with respect to physician employment agreements, physician compensation, facility access, and authorization to provide patient care;
4. The relationship between DHMF and FPMG and the allocation of authority between them concerning physician employment, compensation, approval, renewal or nonrenewal, and termination, to the extent Hylen possesses personal factual knowledge relevant to Plaintiff's alleged employment relationship;
5. Hylen's personal involvement in or communications concerning Plaintiff's employment, compensation, agreements, approval to practice at DHMF facilities, renewal or nonrenewal, and termination; and
6. Reasonable follow-up concerning the foregoing subjects, including any additional material subject as to which Hylen's testimony establishes that she has direct personal knowledge.

Absent a foundation establishing Hylen's personal knowledge or involvement, Plaintiff may not use the deposition to examine Hylen generally concerning the day-to-day operation of the Camarillo clinic or the underlying incidents of alleged discrimination, harassment, retaliation, or patient-safety complaints merely because she is DHMF's CFO.

Nothing in this order prevents counsel from asserting appropriate objections, including attorney-client privilege or work-product objections to a particular question. The possibility that a permitted subject may implicate privileged communications does not, standing alone, warrant prohibiting inquiry into nonprivileged underlying facts.

The Court declines to impose an advance time limit on the deposition. This employment action falls within the exception to the seven-hour deposition limitation set forth in Code of Civil Procedure section 2025.290, subdivision (b)(4). Subdivision (c) provides that the exception creates no presumption concerning the appropriate duration of the deposition and preserves the Court's authority to impose a limit upon a proper showing. DHMF has not demonstrated that prior lengthy

depositions involved improper, repetitive, harassing, or otherwise abusive questioning sufficient to warrant a special prospective time restriction on Hylen's deposition. The deposition shall therefore proceed subject to the otherwise applicable provisions of the Civil Discovery Act. Nothing prevents DHMF or Hylen from seeking appropriate relief if the examination becomes repetitive, irrelevant, harassing, oppressive, or unduly burdensome.

DHMF's suggestion that a discovery referee be appointed to monitor the deposition is denied. The present record does not establish discovery abuse warranting such relief.

The parties indicate that Plaintiff's July 15, 2026 deposition notice included requests for production of documents. Those requests are not before the Court, and the parties do not present any particular document request for adjudication. The Court therefore makes no ruling concerning the document requests accompanying the deposition notice.

Plaintiff's request that the Court take judicial notice of an "irreconcilable inconsistency" between DHMF's position in this motion and Hylen's declarations, and consider that asserted inconsistency in ruling on DHMF's pending Motion for Summary Adjudication, is denied. The employer-status Motion for Summary Adjudication was argued on August 13, 2026 and remains under submission. The Court will not reopen or adjudicate that separately submitted motion in connection with the present discovery dispute.

No monetary sanctions are awarded. Although DHMF's caption refers to a request for monetary sanctions, its memorandum expressly states that DHMF is not requesting monetary sanctions. Plaintiff's request for sanctions is also denied. Given the legitimate dispute concerning the permissible scope of an apex deposition and the partial relief granted herein, the parties acted with substantial justification, and an award of sanctions would be unjust. (Code Civ. Proc., § 2025.420, subd. (h).)

Moving party is ordered to serve notice of the Court's ruling.